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Case Number: 26SMCV00893 Hearing Date: August 20, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

JANE DOE,

Plaintiff,

v.

RISE LUXURY REHAB, LLC, et al.,

Defendants.

Case No.: 26SMCV00893

Hearing Date: August 20, 2026

[TENTATIVE] order RE:

defendant rise luxury rehab,

llc's DEMURRER TO COMPLAINT

BACKGROUND

This case arises from alleged sexual abuse at a drug rehabilitation facility. Defendant Rise in Malibu operates a non-medical residential Alcohol and Other Drug (“AOD”) recovery or treatment facility in Malibu, California. Plaintiff Jane Doe claims that while she was a patient there, John Doe sexually assaulted her.

Plaintiff alleges that “JOHN DOE was placed in unsupervised, intimate, one-on-one contact with Plaintiff in direct violation of all reasonable safety standards. Acting under the cover of his position as a counselor, medication dispenser, and overnight ‘watch’ technician, JOHN DOE used his authority to gain Plaintiff’s trust, access her confidential treatment information, and ultimately subject her to repeated sexual assaults.” Plaintiff claims that even after her discharge, JOHN DOE would ply her with drugs and alcohol, causing relapse, and contributing to a near-fatal overdose.

Plaintiff has sued Rise in addition to other individual defendants including the Founder, CEO and CFO of Rise: Ronald Finnerman, Patrick Mitchell and Parviz Damavandi, respectively. The operative complaint alleges nine claims for: (1) negligence, (2) negligent hiring, training, supervision and retention, (3) negligent failure to warn and/or educate, (4) unfair business practices, (5) physical abuse of a dependent adult, (6) neglect of a dependent adult, (7) sexual harassment, (8) negligent misrepresentation, and (9) negligence per se.

This hearing is on Defendants Rise, Mitchell and Damavandi’s demurrer to and motion to strike the Complaint. Moving Defendants argue that the Complaint is uncertain. In addition, they assert that Plaintiff cannot artificially split her negligence-based claims (negligence, negligent hiring, negligent failure to warn, negligent misrepresentation and negligence per se). Moving Defendants further claim that JOHN DOE was motivated by personal objectives and therefore they could not be vicariously liable for his actions. As to the unfair business practices claim, Moving Defendants argue that there is no allegation of a habitual violation. As to the physical abuse and neglect of a dependent adult claims, Moving Defendants argue that Plaintiff does not qualify as a dependent adult, the allegations do not support a finding of abuse or neglect, and Plaintiff has not alleged that any managing agent of Defendant ratified the alleged wrongdoing in the case.

MEET AND CONFER

Code Civ. Proc. §§ 430.41 and 435.5 requires that before the filing of a demurrer or motion to strike, the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41(a), 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41(a)(2), 435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41(a)(3), 435.5(a)(3).) Rise submits the Declaration of Sarv Homayounpour who fails to attest that he met and conferred telephonically or in person with Plaintiff’s counsel. Plaintiff claims that no such meet and confer took place. Notwithstanding, the Court cannot overrule a demurrer or deny a motion to strike based on an inadequate meet and confer.

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents).) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must

appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”); *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 (“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”); *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Uncertainty

Special demurrers based on uncertainty are rarely sustained—only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Here, the Complaint sufficiently apprises Defendants of the nature of the claims against them. The allegations are not unintelligible, and to the extent there are some ambiguities, they can be clarified through discovery.

Defendants argue that there are no specific allegations made as to Mitchell and Damavandi. Not so. The Complaint alleges that these defendants exercised substantial control over operations, hiring decisions, and the patient care environment, and acted with a conscious disregard for patient safety. It also alleges that these individual defendants had “actual or constructive notice that JOHN DOE was engaging in inappropriate, non-therapeutic, and overtly sexual contact with Plaintiff.” These allegations sufficiently apprise the individual defendants of the claims against them.

Negligence Based Claims

Defendants argue that Plaintiff is restricted to pleading only a single cause of action for negligence. Defendants contend that Plaintiff's causes of action for negligence, negligent hiring, negligent failure to warn, negligent misrepresentation, and negligence per se all arise from the same primary right and are therefore duplicative.

However, “[t]he primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement ... ; or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata. ... The latter application of the primary right theory appears to be most common.” (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 682.)

Even if the claims were duplicative, there is conflicting authority on whether a court may sustain a demurrer on the ground a claim is duplicative of another cause of action. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290 [“Regardless, as [the party] argues, the cause of action for breach of governing documents appears to be duplicative of the cause of action for breach of fiduciary duty. This court has recognized this as a basis for sustaining a demurrer.”]; *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890 [indicating the court may not sustain a demurrer on the ground a cause of action is duplicative.])

Assuming the Court can sustain a demurrer on the ground the causes of action are duplicative, the court considers whether the challenged cause of action “adds nothing to the complaint by way of fact or theory.” (*Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135.) Here, Plaintiff asserts different claims with different elements and different

theories, some grounded on direct liability while others based on vicarious liability.

Additionally, Defendants argue that they cannot be vicariously liable for John Doe's conduct because John Doe was acting for his personal, sexual gratification. However, the negligence claims are based not only on vicarious liability but also on Rise's direct liability.

According to the Complaint, Defendants hired JOHN DOE without conducting adequate background checks, failed to investigate his military discharge, documented alcohol abuse, emotional instability, erratic behavior, and aggression towards women, failed to adequately train JOHN DOE, allowed JOHN DOE unsupervised, private access to Plaintiff, allowing JOHN DOE unrestricted access to Plaintiff's confidential treatment information without a legitimate therapeutic purpose, failed to implement or enforce a zero-tolerance policy for sexual contact with patients, failed to act upon credible reports and visible red flags of inappropriate contact, and failed to report suspected dependent adult abuse to law enforcement or Adult Protective Services as required by Welf. & Inst. Code § 15630.

Defendants next argue that there is no claim for negligence per se. The Court agrees. Negligence per se is not a cause of action, but an evidentiary presumption. (See Quiroz v. Seventh Avenue Center (2006) 140 Cal.App.4th 1256, 1285-1286 (Negligence per se "operates to establish a presumption of negligence for which the statute serves the subsidiary function of providing evidence of an element of a preexisting common law cause of action.") Accordingly, the Court sustains the demurrer to the negligence per se claim.

In reply, Defendants also argue that as to the negligent misrepresentation claim, Plaintiff has not alleged causation. "Plaintiff alleges she relied on Rise's promises in deciding to admit herself (Complaint at pg. 11 ¶134), but the injury she pleads is a subsequent criminal sexual assault by an employee. The claim does not allege facts showing that the representations proximately caused that assault, as opposed to inducing her admission, the causal chain between a safety promise and an employee's independent criminal conduct is not pleaded with the specificity the doctrine requires." These arguments were not made in the demurrer, and the Court cannot consider arguments made for the first time in reply.

UCL Claim

Defendants argue that the UCL claim fails because Plaintiff has not stated a statutory violation nor that Defendant engaged in a pattern of habitual violations. The Court disagrees.

Defendants address only the unlawful prong of Plaintiff's UCL claim. However, Plaintiff's UCL claim also alleges an unfair and fraudulent business practice.

According to the Complaint, "Defendants engaged in a common scheme, arrangement, or plan to actively conceal allegations of sexual abuse by employees and agents, including JOHN DOE, in order to preserve their public image, avoid detection of such abuse, and insulate themselves from public scrutiny, governmental oversight, and investigation, thereby maintaining a false sense of safety for patients and their families and protecting Defendants' reputations and financial interests. By engaging in the foregoing unlawful, unfair, and deceptive business practices, Defendants obtained financial benefits and competitive advantages to the detriment of competitors who complied with applicable laws and industry standards." Defendants do not address these allegations in their demurrer. Defendants cannot seek a demurrer on only a portion of a claim.

Even as to the unlawful prong, Defendants have got it wrong. Plaintiff does state a statutory violation. To be sure, the allegations in the UCL claim section themselves do not reference a statute. But Plaintiff does cite statutory violations elsewhere in her Complaint. For example, according to Plaintiff, Rise did not comply with mandatory reporting requirements in Welf. & Inst. Code § 15630.

Defendants also argue that for there to be an unlawful or unfair “practice,” there must be habitual violations. But Plaintiff does allege a pattern and practice – Defendants purportedly engaged in a “common scheme, arrangement or plan” to conceal sexual abuse at the facility in order to preserve their image and avoid governmental scrutiny. That is an allegation of habitual violations. Accordingly, the Court overrules the demurrer to the UCL claim.

Physical Abuse and Neglect of Dependent Adult

Defendants argue that Plaintiff does not qualify as a dependent adult. The Court disagrees.

The elements of a cause of action under the Elder Abuse and Dependent Adults Act, Welfare & Inst C § 15600, et seq. (the Act) are statutory, and reflect the legislature’s intent to provide enhanced remedies to encourage private, civil enforcement of laws against elder abuse and neglect. (*Intrieri v. Superior Court* (2004) 117 Cal.App.4th 72, 82.) To state a cause of action for dependent adult or elder abuse under the Act and obtain the heightened remedies provided under the Act, the plaintiff must plead facts showing two elements: (1) the defendant has subjected a dependent adult or elder to statutorily-defined physical abuse, neglect or financial abuse; and (2) the defendant acted with recklessness, malice, oppression, or fraud in the commission of the abuse. (Welf. & Inst. Code § 15657.)

A “dependent adult” means a “person, regardless of whether the person lives independently, between the ages of 18 and 64 years who resides in this state and who has physical or mental limitations that restrict his or her ability to carry out normal activities or to protect his or her rights, including, but not limited to, persons who have physical or developmental disabilities.” (§ 15610.23, subd. (a); accord, *Ortiz*, supra, 106 Cal.App.5th at p. 600, fn. 2; see *Bernard*, supra, 39 Cal.4th at p. 801, fn. 6.)

“The word ‘restrict’ is not synonymous with ‘preclude.’ Therefore, it is not necessary to prove the person is incapable of carrying out normal activities or of protecting the person’s rights; it is sufficient that the person’s ability to do so is limited in some significant way.” (*People v. Matye* (2008) 158 Cal.App.4th 921, 923, 70 Cal. Rptr. 3d 342 [construing Pen. Code, § 368, subd. h].)

Section 15610.23 is also written in expansive language, and it does not define “physical or mental limitations.” The statutory language does not, however, require a medical diagnosis. Instead, it expressly states that “physical or mental limitations” are “not limited to[] persons who have physical or developmental disabilities.” (§ 15610.23, subd. (a).)

Here, Plaintiff alleges she had a substance abuse problem and her “physical and mental condition, including detoxification, medication, and emotional impairment, substantially restricted her ability to carry out normal activities and to protect her rights.” The Complaint also alleges that Plaintiff was admitted for medically monitored detoxification, and the process “left Plaintiff physically weak, cognitively impaired, emotionally unstable, and entirely dependent on Defendants’ staff for her daily needs, medical compliance, and safety.” On a demurrer, the Court is required to accept these allegations as true. There is no case that says that a drug addict cannot be a dependent adult.

Defendants next argue that Plaintiff cannot prove neglect because she was not in the care, custody and control of Rise. The Court disagrees.

Welfare and Institutions Code section 15610.57 includes both a general definition of “neglect” and specific examples. The general definition is: “The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.” (*Id.*, subd. (a)(1) (emphasis added).)

In assessing whether a defendant has “care or custody”, the court looks at “the nature of the elder or dependent adult’s relationship with the dependent - not the dependent’s professional standing[.]” (*Winn v. Pioneer Medical Group, Inc.*, 63 Cal.4th at 152.) The assessment of care and custody status is not based on a “task-by-task basis” but requires the “focus on the extent of dependence by a patient on a health care provider rather than on the nature of the particular activities that comprised the patient-provider relationship.” (*Steward v. Superior Court* (2017) 16 Cal.App.5th 87, 103-104.)

Here, Defendants' treatment of Plaintiff was not episodic or limited to discrete tasks. Plaintiff was under Rise's care, custody and control for an inpatient stay that lasted several weeks, during which staff had exclusive responsibility over her environment, movement, and substance abuse treatment. Plaintiff sufficiently alleges the type of continuous, comprehensive custodial relationship that supports a dependent adult abuse claim.

Defendants argue that Plaintiff was not under its care or custody because "she was free to come and go as she pleased. She was there voluntary [sic] and had freedom of choice." Defendants cite no case that says that there is no caretaking or custodial relationship if a Plaintiff is free to check out of a facility. Any such rule would seem to preclude virtually every dependent adult from asserting a dependent adult abuse claim because they or their family member could remove them from the care facility. The Court, however, need not decide this issue because Defendants had the burden to present authorities for their argument, and they failed to do so.

Last, Defendants argue that Plaintiff has not alleged ratification by any officer, director or managing agent of the alleged conduct, as required by the Act. The Court disagrees.

To pursue an elder abuse claim against an entity employer based on the acts of one or more employees, Plaintiff must prove facts equivalent to those which would permit imposition of punitive damages against the employer. (See W&I Code § 15657(c); Civil Code § 3294(b).)

Plaintiff must establish that (1) "the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others"; (2) the employer "authorized or ratified the wrongful conduct", or (3) an officer, director, or managing agent of the company "was personally guilty of oppression, fraud or malice." (Civil Code § 3294(b).)

Here, the Complaint sufficiently alleges ratification by Rise's Founder, CEO and CFO. According to Plaintiff, the individual defendants "were on actual or constructive notice that JOHN DOE was engaging in inappropriate, non-therapeutic, and overtly sexual contact with Plaintiff." Plaintiff claims "RISE's leadership was confronted with credible allegations of sexual contact between JOHN DOE and Plaintiff yet took no corrective action." Instead, Defendants engaged in acts of concealment, by failing to preserve surveillance footage or other corroborating evidence, discouraging staff from discussing the matter, effectively silencing potential witnesses; and shielding JOHN DOE from scrutiny by maintaining his role in patient care after the misconduct began. These allegations are sufficiently specific to support a finding of ratification.

Under Civil Code § 3294(b), "ratification generally occurs where, under the particular circumstances, the employer demonstrates an intent to adopt or approve oppressive, fraudulent, or malicious behavior by an employee in the performance of his job duties. The issue commonly arises where the employer or its managing agent is charged with failing to intercede in a known pattern of workplace abuse, or failing to investigate or discipline the errant employee once such misconduct became known. Corporate ratification in the punitive damages context requires actual knowledge of the conduct and its outrageous behavior." (Coll. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 726-727 [citations omitted].)

Here, Plaintiff alleges that Defendants' managing agents had actual knowledge of the wrongdoing. They took no corrective action. But instead they tried to conceal the misconduct. The Court concludes that these allegations, taken as true for purposes of a demurrer, can support a showing of ratification. Accordingly, the Court overrules the demurrer to the dependent adult claims.

Motion to Strike

Defendants' motion to strike focuses on Plaintiff's punitive damages allegations even though it seeks to strike other allegations that are not related to a punitive damages claim. The Court declines to strike allegations not addressed in the memorandum of points and authorities, specifically page 3, lines 14-15; page 3, lines 18-19; page 4, lines 22-25; page 11, lines 14-16; page 11, lines 17-20; page 12, lines 3-5; page 29, lines 23-26; and page 30, lines 25-28.

As to Plaintiff's punitive damages claim, Defendants argue that Plaintiff has alleged only negligence. The Court disagrees.

The Court has overruled the demurrer to the dependent abuse claims, and under those claims, Plaintiff is entitled to punitive damages. A reasonable jury could conclude that there is malice and oppression where a defendant knew of ongoing abuse (not just of Plaintiff but of other dependent adults), failed to take corrective action, and instead concealed the abuse. These actions or inactions are not merely negligent.

Additionally, Rise argues that Plaintiff cannot meet the heightened pleading requirements for seeking punitive damages against a corporate entity. The Court disagrees for reasons stated above. The Complaint sufficiently alleges ratification by the Founder, CEO and CFO, which satisfies the section 3294 requirement that a plaintiff must allege facts showing that an officer, manager, managing member or other individual possessing policy making authority personally engaged in, authorized, ratified or had advance knowledge of the alleged wrongful conduct.

Accordingly, the Court denies the motion to strike.

CONCLUSION AND ORDER

Based on the foregoing, the Court SUSTAINS the demurrer to the ninth cause of action for negligence per se without leave to amend and OVERRULES the demurrer as to the other causes of action. The Court DENIES the motion to strike.

IT IS SO ORDERED.

DATED: August 20, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court